

0 Indian Pipes Road Contractor Agreement

This Agreement is made between Renzo Sanio, Michael Sanio, Grecia Matos ("Client") and Rainstorm LLC dba. Shenandoah Dreams ("Contractor"), with a principal place of business at 265 Walnut Drive, Timberville, VA 22853.

1. Services to Be Performed

Contractor agrees to perform the services described in Exhibit A, which is attached to this Agreement.

2. Payment

In consideration for the services to be performed by Contractor, Client agrees to pay Contractor at the following rates: As indicated in draw schedule in Exhibit A. Contractor shall be paid within a reasonable time after Contractor submits an invoice to Client. The invoice should include the following: an invoice number, the dates covered by the invoice, and a summary of the work performed.

3. Expenses

Contractor shall be responsible for all expenses incurred while performing services under this Agreement. This includes automobile, truck, and other travel expenses; vehicle maintenance and repair costs; vehicle and other license fees and permits; insurance premiums; road, fuel, and other taxes; fines; radio, pager, or cell phone expenses; meals; and all salary, expenses, and other compensation paid to employees or contract personnel the Contractor hires to complete the work under this Agreement.

4. Vehicles and Equipment

Contractor will furnish all vehicles, equipment, tools, and materials used to provide the services required by this Agreement. Client will not require Contractor to rent or purchase any equipment, product, or service as a condition of entering into this Agreement.

5. Independent Contractor Status

Contractor is an independent contractor, and neither Contractor nor Contractor's employees or contract personnel are, or shall be deemed, Client's employees. In its capacity as an independent contractor, Contractor agrees and represents, and Client agrees, as follows

[Check all that apply]

☒ Contractor has the right to perform services for others during the term of this Agreement.

☒ Contractor has the sole right to control and direct the means, manner, and method by which the services required by this Agreement will be performed. Contractor shall select the routes taken, starting and quitting times, days of work, and order the work is performed.

☒ Contractor has the right to hire assistants as subcontractors or to use employees to provide the services required by this Agreement.

[X] Neither Contractor nor Contractor's employees or contract personnel shall be required to wear any uniforms provided by Client.

[X] The services required by this Agreement shall be performed by Contractor, Contractor's employees, or contract personnel, and Client shall not hire, supervise, or pay any assistants to help Contractor.

[X] Neither Contractor nor Contractor's employees or contract personnel shall receive any training from Client in the professional skills necessary to perform the services required by this Agreement.

[X] Neither Contractor nor Contractor's employees or contract personnel shall be required by Client to devote full time to the performance of the services required by this Agreement.

6. Business Licenses, Permits, and Certificates

Contractor represents and warrants that Contractor and Contractor's employees and contract personnel will comply with all federal, state, and local laws requiring drivers and other licenses, business permits, and certificates required to carry out the services to be performed under this Agreement.

7. State and Federal Taxes

Client will not:

- withhold FICA (Social Security and Medicare taxes) from Contractor's payments or make FICA payments on Contractor's behalf
- make state or federal unemployment compensation contributions on Contractor's behalf, or
- withhold state or federal income tax from Contractor's payments.

Contractor shall pay all taxes incurred while performing services under this Agreement—including all applicable income taxes and, if Contractor is not a corporation, self-employment (Social Security) taxes. Upon demand, Contractor shall provide Client with proof that such payments have been made.

8. Fringe Benefits

Contractor understands that neither Contractor nor Contractor's employees or contract personnel are eligible to participate in any employee pension, health, vacation pay, sick pay, or other fringe benefit plan of Client.

9. Unemployment Compensation

Client shall make no state or federal unemployment compensation payments on behalf of Contractor or Contractor's employees or contract personnel. Contractor will not be entitled to these benefits in connection with work performed under this Agreement.

10. Workers' Compensation

Client shall not obtain workers' compensation insurance on behalf of Contractor or Contractor's employees. If Contractor hires employees to perform any work under this Agreement, Contractor will cover them with workers' compensation insurance to the extent required by law and provide Client with a certificate of workers' compensation insurance before the employees begin the work.

11. Insurance

Contractor shall obtain the following insurance coverage and maintain it during the entire term of this Agreement:

[X] Comprehensive or commercial general liability insurance coverage in at least the minimum amount required by law, including coverage for bodily injury, personal injury, broad form property damage, contractual liability, and cross-liability. Before commencing any work, Contractor shall provide Client with proof of this insurance and with proof that Client has been made an additional insured under the policies.

Client shall obtain the following insurance coverage and maintain it during the entire term of this Agreement:

[X] Before commencing construction of any improvements on the property and during any construction activities contemplated by this Agreement, Client shall obtain and keep in full force and effect all builders risk insurance policy for all portions of the property with coverage equal to the total amount of the construction contracts for all such construction activities. Nothing in this Agreement is intended to relieve Client of its obligation to perform under this Agreement and, in the event of loss, Client shall use the proceeds of such insurance to promptly reconstruct the damaged or lost improvements.

12. Indemnification

Contractor shall indemnify and hold Client harmless from any loss or liability arising from performing services under this Agreement.

13. Term of Agreement

This agreement will become effective when signed by both parties and will terminate on the earlier of:

- the date Contractor completes the services required by this Agreement
- or
- the date a party terminates the Agreement as provided below.

14. Terminating the Agreement

With reasonable cause, either Client or Contractor may terminate this Agreement, effective immediately upon giving written notice.

Reasonable cause includes:

- a material violation of this Agreement, or
- any act exposing the other party to liability to others for personal injury or property damage.

OR

Either party may terminate this Agreement at any time by giving _45_ days' written notice to the other party of the intent to terminate.

15. Exclusive Agreement

This is the entire Agreement between Contractor and Client.

16. Modifying the Agreement

This Agreement may be modified only by a writing signed by both parties.

17. Resolving Disputes

If a dispute arises under this Agreement, the parties agree to first try to resolve the dispute with the help of a mutually agreed-upon mediator in Warren County, VA. Any costs and fees other than attorney fees associated with the mediation shall be shared equally by the parties. If it proves impossible to arrive at a mutually satisfactory solution through mediation, the parties agree to submit the dispute to a mutually agreed-upon arbitrator in Warren County, VA. Judgment upon the award rendered by the arbitrator may be entered in any court having jurisdiction to do so. Costs of arbitration, including attorney fees, will be allocated by the arbitrator.

18. Confidentiality

Contractor acknowledges that it will be necessary for Client to disclose certain confidential and proprietary information to Contractor in order for Contractor to perform duties under this Agreement. Contractor acknowledges that disclosure to a third party or misuse of this proprietary or confidential information would irreparably harm Client. Accordingly, Contractor will not disclose or use, either during or after the term of this Agreement, any proprietary or confidential information of Client without Client's prior written permission except to the extent necessary to perform services on Client's behalf. Proprietary or confidential information includes:

- the written, printed, graphic, or electronically recorded materials furnished by Client for Contractor to use
- any written or tangible information stamped "confidential," "proprietary," or with a similar legend, or any information that Client makes reasonable efforts to maintain the secrecy of
- business or marketing plans or strategies, customer lists, operating procedures, trade secrets, design formulas, know-how and processes, computer programs and inventories, discoveries, and improvements of any kind, sales projections, and pricing information
- information belonging to customers and suppliers of Client about whom Contractor gained knowledge as a result of Contractor's services to Client, and

Upon termination of Contractor's services to Client, or at Client's request, Contractor shall deliver to Client all materials in Contractor's possession relating to Client's business. Contractor acknowledges that any breach or threatened breach of Clause 18 of this Agreement will result in irreparable harm to Client for which damages would be an inadequate remedy. Therefore, Client shall be entitled to equitable relief, including an injunction, in the event of such breach or threatened breach of Clause 18 of this Agreement. Such equitable relief shall be in addition to Client's rights and remedies otherwise available at law.

19. Proprietary Information.

A. The product of all work performed under this Agreement ("Work Product"), including without limitation all notes, reports, documentation, drawings, computer programs, inventions, creations, works, devices, models, work-in-progress and deliverables will be the sole property of the Client, and Contractor hereby assigns to the Client all right, title and interest therein, including but not limited to all audiovisual, literary, moral rights and other copyrights, patent rights, trade secret rights and other proprietary rights therein. Contractor retains no right to use the Work Product and agree not to challenge the validity of the Client's ownership in the Work Product.

B. Contractor hereby assigns to the Client all right, title, and interest in any and all photographic images and videos or audio recordings made by the Client during Contractor's work for them, including, but not limited to, any royalties, proceeds, or other benefits derived from such photographs or recordings.

C. The Client will be entitled to use Contractor's name and/or likeness use in advertising and other materials.

20. No Partnership

This Agreement does not create a partnership relationship. Contractor does not have authority to enter into contracts on Client's behalf.

21. Assignment and Delegation

Either Contractor or Client may assign rights and may delegate duties under this Agreement.

22. Applicable Law

This Agreement will be governed by Virginia law, without giving effect to conflict of laws principles.

Signatures

Client/Owner: Renzo Sanio

Printed Name

Signed by

Renzo Sanio

Signature

1/20/2025

Date

Michael Sanio

Printed Name

DocuSigned by

Michael Sanio

Signature

1/20/2025

Date

Grecia Matos

Printed Name

DocuSigned by

Grecia Matos

Signature

1/20/2025

Date

Contractor: Raymond Wenzel

Printed Name

Raymond Wenzel

Signature

2025-01-21

Date

Amro Hwary

Printed Name

Amro Hwary

Signature

2025-01-21

Date

Attachments: X Exhibit A: Additional Description of Services to be Performed
(chk if applicable)

EXHIBIT A:



Rainstorm LLC dba. Shenandoah Dreams
265 Walnut Dr,
Timberville, VA 22853
License #2705171542

0 INDIAN PIPES ROAD PROPOSAL

Address: 0 Indian Pipes Road
Description: Build single family home ~1,000 sq ft. ~360 LFT of driveway
Valid Until: January 20, 2024

Scope of Work

<u>Item</u>	<u>Budget</u>	<u>Plus 25%</u>	<u>Fixed Cost</u>	<u>Allowance</u>	<u>Category Expected Total</u>
Planning					\$3,750.00
Permits	\$2,000.00	\$2,500.00	X		
Steel Engineering	\$1,000.00	\$1,250.00			
Driveway and Excavating					\$15,250.00
Gravel Base	\$5,000.00	\$6,250.00			
Skid Steer Labor	\$2,500.00	\$3,125.00	X		
Cut Trees Labor and Chip	\$3,500.00	\$4,375.00	X		
Chipper Rental	\$1,200.00	\$1,500.00			
Foundation					\$24,375.00
Concrete Material	\$5,000.00	\$6,250.00			
General Reimbursements (rebar, etc)	\$1,500.00	\$1,875.00			
Steel	\$8,000.00	\$10,000.00			
Excavation Labor	\$2,000.00	\$2,500.00	X		
Installation Labor	\$3,000.00	\$3,750.00	X		
Framing					\$25,000.00
Framing Material	\$10,000.00	\$12,500.00	X		
Framing Labor	\$10,000.00	\$12,500.00	X		
Siding, Windows, Doors					\$53,125.00

Metal Roofing/Siding	\$20,000.00	\$25,000.00			
Windows+Doors Material Allowance	\$15,000.00	\$18,750.00		X	
Windows and Doors Installation	\$2,500.00	\$3,125.00	X		
Cedar Siding Labor	\$2,000.00	\$2,500.00	X		
Cedar Siding Material	\$3,000.00	\$3,750.00			
Rough-Ins					\$35,625.00
HVAC (3 units)	\$9,000.00	\$11,250.00			
Electric Rough-Ins	\$12,000.00	\$15,000.00			
Electric Fixture Allowance	\$1,000.00	\$1,250.00		X	
Plumbing Rough-Ins	\$6,000.00	\$7,500.00			
Fixture allowance	\$500.00	\$625.00		X	
Insulation, Drywall, Paint					\$19,375.00
Insulation	\$7,000.00	\$8,750.00			
Drywall	\$5,000.00	\$6,250.00			
Paint	\$3,500.00	\$4,375.00			
Flooring					\$7,500.00
Material Allowance	\$3,000.00	\$3,750.00		X	
Flooring Labor	\$3,000.00	\$3,750.00	X		
Bathrooms					\$7,687.50
Tile Allowance	\$1,500.00	\$1,875.00		X	
Tile installation	\$3,000.00	\$3,750.00	X		
1 Shower Glass Allowance	\$800.00	\$1,000.00		X	
1 Bath Vanity Allowance	\$600.00	\$750.00		X	
Toilet Allowance	\$250.00	\$312.50		X	
Kitchen					\$8,750.00
Kitchen Cabinet Allowance	\$3,500.00	\$4,375.00		X	
Countertop Allowance	\$1,500.00	\$1,875.00		X	

Kitchen Install Labor	\$2,000.00	\$2,500.00	X		
Interior Details					\$20,187.50
Interior Doors	\$800.00	\$1,000.00			
Baseboards and Trim	\$800.00	\$1,000.00			
Interior Doors, Baseboard, Trim Installation	\$1,500.00	\$1,875.00	X		
Stair Allowance	\$5,000.00	\$6,250.00		X	
Stair Install	\$1,500.00	\$1,875.00	X		
Fireplace Allowance	\$2,000.00	\$2,500.00		X	
Fireplace Installation	\$1,500.00	\$1,875.00	X		
Interior Railing Allowance	\$1,000.00	\$1,250.00		X	
Interior Railing Installation	\$750.00	\$937.50	X		
Cargo Net Allowance	\$500.00	\$625.00		X	
Cargo Net Installation	\$800.00	\$1,000.00	X		
Deck and Outdoor					\$82,500.00
Decking Allowance	\$1,500.00	\$1,875.00		X	
Deck Labor	\$3,000.00	\$3,750.00	X		
Deck Railing	\$2,000.00	\$2,500.00			
Deck Railing Installation	\$1,500.00	\$1,875.00	X		
Finish Gravel Allowance	\$5,000.00	\$6,250.00			
Landscaping Allowance	\$5,000.00	\$6,250.00		X	
Septic, Well, and Utilities Allowance	\$60,000.00	\$60,000.00		X	
Construction Misc					\$4,375.00
Porta-Potty Rental	\$500.00	\$625.00			
Dumpsters	\$3,000.00	\$3,750.00			

Total	\$258,000.00	\$307,500.00			
Cost per Sqft (1,000 sqft)	\$258.00	\$307.50			
Allowances Totals	\$102,650.00	\$113,312.50			
Target Minus Allowances (Savings Line)	\$155,350.00	\$194,187.50			
Expected Total	\$307,500.00				
Expected Maximum Price	\$323,035.00				
Guaranteed Maximum Price (GMP Excludes Allowances)	\$209,722.50				
Client Allowance Spending Budget	\$102,650.00				

***Expected Maximum Price assumes all allowances are met. We are unable to guarantee that allowances are met due to the nature of the work and/or dependence on client's personal choices**

***GMP is NOT including allowances. This is the GMP for all items outside of allowance items**

***Client allowance spending budget is a suggestion for the client to spend on allowed items. If the budget is surpassed, the client must come out of pocket. If there is remaining budget at the completion of the project, 100% of the savings are passed to the client.**

***Savings line is \$155,350.00. This means if the cumulative sum of non-allowed items result in less than \$155,350.00 at delivery of project, the savings are split between builder and client at a 40/60 ratio. 40% of savings to the builder, 60% savings to the client.**

Approximate Timeline:

- Permits to be pulled by approximately February 15th
- Foundation to be completed by approximately middle of March
- Framing to be completed by approximately middle of April
- Rough-ins to be completed by approximately middle of May
- Drywall to be completed by approximately beginning of June
- Home to be completed by approximately end of July

Note: Due to the winter season, this is very rough and may change at any time due to unforeseen circumstances or "acts of god" such as inclement weather.

Non-inclusions:

- Surveys are not included, including but not limited to pinning the footers if needed..
- Screens for the sliding door and windows are not included in this estimate. Can be added separately; we can inquire about the cost
- Changes to the scope of work will incur additional costs

Excavating Clauses:

- Rock, poor soil conditions, water in excavations and other unforeseen site conditions may incur additional charges.

Draw Schedule:

Description	Amount	Due Date
SIGNING DEPOSIT	\$2,500.00	At signing of this agreement
SOFT DRAW	\$25,187.50	At closing of loan
MILESTONE #1	Variable	Completion of site Clearing
MILESTONE #2	Variable	Completion of Foundation
MILESTONE #3	Variable	Completion of Framing
MILESTONE #4	Variable	Completion of Rough-In Inspection
MILESTONE #5	Variable	Roof, Siding, Deck Completed
MILESTONE #6	Variable	Insulation, Drywall, Paint, Flooring, Tiles Completed
COMPLETION	Variable	Final Inspection Passed
EXPECTED TOTAL	\$307,500.00	

Note: In the cost-plus model, the milestone draws will be variable and dependant on the actual cost of estimated items in the scope of work.

Signatures:

Amro Hwary 2025-01-21

Amro Hwary, Rainstorm LLC, Contractor Date

Raymond Wenzel 2025-01-21

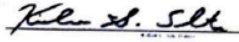
Raymond Wenzel, Rainstorm LLC, Contractor Date

Signed by: Renzo Sanio 1/20/2025
7CF8A63C799C42B... Renzo Sanio, Client Date

DocuSigned by: Michael Sanio 1/20/2025
A771357090D3415... Michael Sanio, Client Date

DocuSigned by: Grecia Matos 1/20/2025
7A5D18EEDB57483... Grecia Matos, Client Date

END EXHIBIT A

COMMONWEALTH of VIRGINIA Department of Professional and Occupational Regulation 9960 Mayland Drive, Suite 400, Richmond, VA 23233 Telephone: (804) 367-8500	
EXPIRES ON 06-30-2026	NUMBER 2705171542
BOARD FOR CONTRACTORS CLASS A CONTRACTOR *CLASSIFICATIONS* RBC	
	RAINSTORM LLC 265 WALNUT DR TIMBERVILLE, VA 22853
Status can be verified at http://www.dpor.virginia.gov	
	

(SEE REVERSE SIDE FOR PRIVILEGES AND INSTRUCTIONS)

COMMONWEALTH of VIRGINIA
Department of Professional and Occupational Regulation

CLASS A BOARD FOR CONTRACTORS
CONTRACTOR

***CLASSIFICATIONS* RBC**

NUMBER: 2705171542 EXPIRES: 06-30-2026

RAINSTORM LLC
265 WALNUT DR
TIMBERVILLE, VA 22853



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Contractor Transaction Recovery Fund | Virginia Department of Professional and Occupational Regulation

Contractor Transaction Recovery Fund

Contractor Transaction Recovery Fund

The Virginia Contractor Transaction Recovery Act (<http://law.lis.virginia.gov/vacodefull/title54.1/chapter11/article2/>) provides relief to **eligible** consumers who have incurred losses through the improper or dishonest conduct of a **licensed residential contractor**. The Recovery Fund is supported entirely by assessments paid by licensed contractors, not by any tax revenues.

Filing a claim does not guarantee payment.

Who Is Eligible To File A Claim?

A person who has been awarded a judgment in a court of competent jurisdiction in the Commonwealth of Virginia against a licensed contractor and was subject to monetary loss *may be eligible* to file a claim. In addition, a property owners' association as defined in § 55.1-1800 (<https://law.lis.virginia.gov/vacode/55.1-1800/>) may qualify, if it contracted with a licensee for improvements to the common areas owned by the association.

A claimant who has obtained a judgment against a bonded contractor must seek recovery through the bond. If you are uncertain whether a contractor is bonded, please contact either the Board or Recovery Fund staff.

The court judgment must be obtained against an entity **licensed** by the Board for Contractors and must be **based upon the improper or dishonest conduct of the contractor**. Any language in the judgment supporting the conclusion that the court found the conduct of the licensed contractor involved improper or dishonest conduct may be used by the Board to determine eligibility for recovery from the Fund.

- "Improper or dishonest conduct" (<http://law.lis.virginia.gov/vacode/title54.1/chapter11/section54.1-1118/>) includes only the wrongful taking or conversion of money, property, or other things of value which involves fraud, material misrepresentation, or conduct constituting gross negligence, continued incompetence, or intentional violation of the Uniform Statewide Building Code (<http://law.lis.virginia.gov/vacode/title36/chapter6/>) (Title 36, Chapter 6 of the Code of Virginia).
- The term "improper or dishonest conduct" **does not include** mere breach of contract. **NOTE:** Any disciplinary action taken against a licensee by the Board for Contractors does not, by itself, satisfy any statutory requirements to support a Recovery Fund claim.

In situations where the licensed contractor has filed bankruptcy, the consumer must first file a claim with the proper bankruptcy court. If no distribution is made, or if the distribution fails to satisfy the claim, the consumer may then file a Recovery Fund claim with the Board. If the court order is silent on the matter of the licensee's conduct, the Board will determine whether the conduct was improper and dishonest and what amount, if any, such claimant is entitled to recover from the Fund.

The contractor **must have been licensed** during the period in which the improper or dishonest conduct occurred. The contract between the consumer and the contractor must involve contracting for the consumer's *residence located in Virginia*.

Not Eligible

State law prohibits the following from filing a Recovery Fund claim:

1. an employee, vendor, spouse or child of the contractor;
2. another licensed contractor;
3. a financial or lending institution; or
4. anyone whose business involves the construction or development of real property.

*Please note, the General Assembly, **not** the Board for Contractors, establishes eligibility criteria for the Recovery Fund.*

Limitations

State law limits a single Recovery Fund claim to **\$20,000**. Multiple claims involving the same contractor are limited to **\$40,000** per biennium.

If multiple claims involving one contractor exceed \$40,000, the claim amounts must be prorated.

The Recovery Fund does not pay interest, punitive damages, exemplary damages, or any amounts that do not constitute an actual monetary loss to the claimant. However, the award may include attorneys' fees and court costs.

https://www.dpor.virginia.gov/Boards/Contractors_Recovery_Fund

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Contractor Transaction Recovery Fund | Virginia Department of Professional and Occupational Regulation

Source of Funding

The Contractor Transaction Recovery Fund is not funded by any tax revenues. All administrative costs and claims are funded with assessments paid by contractors.

Frequently Asked Questions

Is it necessary to be represented by an attorney?

This decision is entirely up to the claimant. While some claimants choose to be represented by an attorney in their claim, it is not necessary in order to file a claim. There are multiple documents that will need to be submitted. Some find an attorney helps navigate that process and paperwork but again seeking legal assistance is entirely up to the claimant. If the claimant is represented by an attorney, DPOR staff will contact that attorney directly with regard to the claim. Attorney fees awarded by the court may be recoverable from the Fund.

What can be expected after the filing of a claim?

Once a claim has been received by DPOR, staff will review the file to determine whether the claimant meets the eligibility requirements established by state law (§ 54.1-1120 (<http://law.lis.virginia.gov/vacode/title54.1/chapter11/section54.1-1120/>) of the Code of Virginia). If the claimant is determined eligible based on the staff review, the claim file along with a recommendation for payment will be reviewed by the full Board for Contractors (Boards/Contractors) at its next regularly scheduled meeting, where the Board will make a final decision on whether to approve the claim and for what amount.

If questions concerning actual monetary loss or eligibility exist, your claim may be referred to an Informal Fact-Finding (IFF) Conference to gather additional information, with a Board member presiding over the administrative proceeding. The purpose and focus of any IFF Conference, scheduled at the Board's discretion, is to determine the actual loss the claimant incurred as a result of the actions of the licensed contractor and/or any eligibility issues involved. Only the actual loss, along with attorney fees and court costs, will be considered. Special damages, consequential damages, punitive damages, etc. will not be considered. The Board member may ask questions about the claim and the information provided. Following the presentation of this information, the Board member makes a recommendation as to the amount of monetary relief, if any, to approve. The recommendation and claim file is then reviewed by the full Board at a regularly scheduled meeting, where the Board makes the final decision on whether to approve the claim and for what amount.

What is the basic time frame?

It is difficult to state a general time frame because each claim is different. Factors affecting the process include whether all required documentation is included with the claim form, whether the civil action has been completed as well as when the claim was submitted. The Board meets approximately every other month to review Recovery Fund claim recommendations. While some claims may take just a couple of weeks, others may take a few months depending on the time it takes to receive all the requested information and documentation. **Assistance from the Recovery Fund occurs *only after* all other civil legal remedies are exhausted.**

Claim Form and Instructions

When the consumer takes any legal action against a contractor, the Clerk of Court should be notified that the Board for Contractors must also receive a copy of the notice served on the licensee. An affidavit stating the acts of improper or dishonest conduct of the licensee should be included with the notice given to the Board.

After the consumer obtains a judgment from a court, the consumer must attempt to collect from the licensee by conducting debtor interrogatories. This legal action determines whether the licensee has any assets which can be sold or applied to satisfy the court judgment. If any assets are revealed by the interrogatories, the consumer must provide evidence that all legally available actions have been taken to sell the assets, and disclose amounts realized from such actions.

A Contractor Recovery Fund Claim Form must be filed with the Department of Professional and Occupational Regulation (DPOR) **within 12 months after the judgment is final**. Attach a certified copy of the judgment order, copies of all pleadings filed by either party (if any), a copy of the contract, a notarized affidavit stating the acts of improper or dishonest conduct by the licensee which form the basis of this claim, and evidence that debtor interrogatories were conducted (which should include the front and back of the summons for interrogatories). It is also helpful for a claimant to provide proof of the amount of their monetary loss.

Recovery Fund Claim Forms

- English (<https://www.dpor.virginia.gov/sites/default/files/FormsAndApplications/A426-27CLAIM.pdf>)
- Spanish (<https://www.dpor.virginia.gov/sites/default/files/FormsAndApplications/CON%20RF%20Claim%20Form-SPANISH.pdf>)
- Korean (<https://www.dpor.virginia.gov/sites/default/files/FormsAndApplications/CON%20RF%20Claim%20Form-KOREAN.pdf>)
- Vietnamese (<https://www.dpor.virginia.gov/sites/default/files/FormsAndApplications/CON%20RF%20Claim%20Form-VIETNAMESE.pdf>)

For more information, contact:

Recovery Fund Office | DPOR
9960 Mayland Drive, Suite 400

https://www.dpor.virginia.gov/Boards/Contractors_Recovery_Fund

2/3

